

IN THE SUPREME COURT OF
BANGLADESH
HIGH COURT DIVISION
(CRIMINAL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Shohrwardi

Criminal Revision No. 1505 of 2022

Md. Kawsar Hossain

...Appellant

-Versus-

Nur Nabi and another

...Respondents

Mr. Das Tapon Kumar, Advocate

...For the convict petitioner

Mr. S.M. Quamrul Hasan, Advocate

...For opposite party No. 1

Mr. S.M Golam Mostofa Tara, DAG with

Mr A. Mannan, AAG

.....for the State.

Heard on 16.01.2024

Judgment delivered on 11.06.2024

On an application under Section 439 read with Section 435 of the Code of Criminal Procedure, 1898 Rule was issued calling upon the opposite parties to show cause as to why the judgment and order of conviction and sentence dated 27.03.2022 passed by the Sessions Judge, Laxmipur in Criminal Appeal No. 62 of 2021 affirming the judgment and order of conviction and sentence dated 03.01.2017 passed by the Joint Sessions Judge, Court No.2, Laxmipur in Session Case No. 296 of 2016 arising out of C.R Case No. 3 of 2016 convicting the petitioner under section 138 of the Negotiable Instruments Act, 1881 and sentencing him thereunder to suffer simple imprisonment for 6(six) months and fine of Tk. 31,00,000 should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

The prosecution case, in short, is that the accused Md. Kawsar Hossain received Tk. 1700,000 to sell five decimals of land from the complainant Noor Nobi and executed the registered bainanama No. 1557 dated 31.3.2015. After that, he also received Tk. 14,00,000 from the complainant. The complainant came to know that the accused mortgaged the said property to the bank and did not transfer land. The accused suppressing the mortgage, received total Tk. 3100,000. On 12.11.2015 the accused issued cheque No. 3392639 drawn on his Account No. CA-45 maintained with Uttara Bank Ltd, Raypur Branch for payment of Tk. 3100,000. The complainant presented the said cheque on 14.11.2015 and 01.12.2015 for encashment but the same was dishonored due to insufficient funds. After that, the complainant issued a legal notice on 02.12.2015 to the accused through registered post with AD to pay the cheque amount within 30 days from the date of receipt of the notice but he did not pay the cheque amount within time. Subsequently, he filed the complaint petition.

After filing the complaint petition, cognizance was taken against the accused under section 138 of the Negotiable Instruments Act, 1881. During trial, the charge was framed under section 138 of the Negotiable Instruments Act, 1881 against the accused which was read over and explained to him and he pleaded not guilty to the charge and claimed to be tried following law. The prosecution examined 1 PW to prove the charge against the accused. After examination of the prosecution witness, the accused was examined under section 342 of the Code of Criminal Procedure, 1898 and again he pleaded not guilty to the charge. The defence examined 3 DWs. After concluding the trial, the trial court by judgment and order dated 03.01.2017 convicted the accused under section 138 of the Negotiable Instruments Act, 1881 and sentenced him to suffer imprisonment for 06 (six) months

and fine of Tk. 31,00,000 against which the accused filed the instant appeal.

P.W. 1 Nur Nabi is the complainant. He stated that the accused issued a cheque on 12.11.2015 in his favour for payment of Tk. 31,00,000 but the same was dishonored on 01.12.2015. He served legal notice on 02.12.2015 but he did not pay the cheque amount. He proved the complaint petition as exhibit-1 and his signature on the complaint petition as exhibit -1/1. He proved the disputed cheque as exhibit-2, the dishonoured slip as exhibit-3, the legal notice as exhibit-4 and the postal receipt registered with AD as exhibit-5. During cross-examination, he stated that initially, he issued a cheque for Tk. 17,00,000 and subsequently he stated that firstly he paid Tk. 2,00,000 and 15,00,000 and lastly Tk. 2,00,000 total Tk. 19,00,000 were paid by cheques. The accused received total Tk. 31,00,000. The accused received Tk. 14,00,000 in cash. He denied the suggestion that in the presence of the Commissioner, he received Tk. 400,000. He denied the suggestion that he did not send the legal notice correctly.

D.W. 1 Kawsar stated that he executed a bainanama regarding 5 decimals of land. He received Tk. 2,00,000 by cheque and subsequently he also received Tk. 15,00,000. The accused paid total Tk. 19,00,000. A shalish took place and it was decided that the accused would pay the money. He paid Tk. 4,00,000 to the complainant and the former Poura Chairman Abu Zafar was present. Subsequently, it was decided that he would issue a signed blank cheque. During cross-examination, he stated that there is no documents regarding the payment of Tk. 4,00,000 on 28.04.2016. The value of the 5 decimals of land was fixed at Tk. 40,00,000. He denied the suggestion that he received total Tk. 31,00,000 from the complainant. He admitted that before receiving money from the

complainant, he mortgaged the land to the Uttara Bank Ltd for which he could not transfer the land to the complainant. He admitted that he issued a cheque on 12.11.2015 for payment of Tk. 31,00,000.

D.W. 2 Hossein Ahmed stated that the complainant and the accused are known to him and the bainanama was executed for Tk. 39,00,000. Nur Nabi paid total Tk. 19,00,000 in 3 (three) instalments and the land was mortgaged to the bank. The accused paid Tk. 4,00,000 to the complainant. During cross-examination, he stated that the property was mortgaged before the execution of the bainanama. He admitted that he was not present at the time of payment of Tk. 4,00,000. He heard that Kawsar issued a blank cheque in favour of Nur Nabi. The accused Kawsar is his son-in-law. He admitted that the cheque was dishonoured twice. He denied the suggestion that the accused paid Tk. 4,00,000 to the complainant. There is no document for payment of Tk. 4,00,000. A shalish took place on 28.10.2016.

D.W. 3 Abu Zaher Bachchu stated that the complainant and the accused were known to him and at the time of payment of Tk. 4,00,000 to Nur Nabi by the accused he was present. During cross-examination, he stated that there was a land dispute between them. At the time of payment of said 4,00,000, he did not see P.W. 2 Hossen Mia. There is no document of payment. The occurrence took place about 06 months ago. He denied the suggestion that he deposed falsely.

The learned Advocate Mr. Das Tapon Kumar appearing on behalf of the convict petitioner submits that both the accused and the complainant settled the dispute regarding the issuance of cheque and the convict petitioner paid Tk. 15,50,000 to the complainant during the pendency of the Rule and Tk. 15,50,000 deposited by the accused before filing the appeal had been withdrawn by the complainant. Both

parties executed a compromise on 30.05.2024 between them. Therefore, he prayed for acquittal considering the compromise between the parties.

The learned Advocate Ms. S.M. Quamrul Hasan appearing on behalf of the complainant opposite party submits that the complainant and the convict petitioner executed a compromise on 30.05.2024 between them. The learned Advocate admitted that the complainant received the entire cheque amount.

I have considered the submission of the learned Advocate Mr. Das Tapon Kumar who appeared on behalf of the convict petitioner and the learned Advocate Mr. S.M. Quamrul Hasan who appeared on behalf of opposite No. 1, perused the evidence, impugned judgments and orders passed by the courts below and the records.

On perusal of the records, it appears that both the parties having filed a joint application annexed a compromise dated 30.05.2024 signed by both the complainant and the convict petitioner wherein it has been mentioned that the convict petitioner paid total Tk. 15,50,000 to the complainant and he received the said amount. The complainant also withdrew 50% of the cheque amount deposited by the convict petitioner before filing the appeal.

There is a presumption under section 118(a) of the Negotiable Instruments Act, 1881 that every negotiable instrument was made or drawn for consideration, and that every such instrument, when it has been accepted, indorsed, negotiated or transferred, was accepted, indorsed, negotiated or transferred for consideration. The presumption under Section 118 (a) is rebuttable. By adducing evidence and cross-examining P.W. 1 the defence could not rebut the presumption under Section 118(a) of the said Act. Furthermore, the convict petitioner admitted that he issued the cheque in favour of the complainant.

Therefore, I am of the view that the convict petitioner issued the cheque in favour of the payee-complainant for consideration. The cheque was dishonoured for insufficient funds. After service of notice in writing upon the convict petitioner, he did not pay the cheque amount and the complainant filed the case following all procedures provided in Section 138 of the Negotiable Instruments Act, 1881. Thereby he committed an offence under Section 138 of the Negotiable Instruments Act, 1881. The prosecution proved the charge against the convict petitioner beyond all reasonable doubt and the Courts below on proper assessment and evaluation of evidence legally passed the impugned judgments and orders of conviction.

Considering the evidence, the facts and circumstances of the case and the gravity of the offence, I am of the view that the ends of justice would be best served if the sentence passed by the courts below is modified as under;

The accused Md. Kawsar Hossian is found guilty of the offence under section 138 of the Negotiable Instruments Act, 1881 and he is sentenced to pay a fine of Tk. 31,00,000 (thirty-one lakh) i.e. cheque amount.

The complainant is entitled to get the fine amount imposed by this court.

The Rule is disposed of with a modification of the sentence.

Since the complainant already received the entire the cheque amount, the convict petitioner is not required to deposit the fine amount again.

Send down the lower Court's records at once.